

EARLY MODERN WORKSHOP: Jewish History Resources

Volume 19: Jewish Mobilities Reconsidered

August 15-16, 2022

Online on Zoom

Jewish Wills in Southern Colonies: Three Cases from Charleston and Savannah

Shari Rabin, Oberlin College

Charleston County Will Book, Volume 6, page 635; Chatham County Will Book, Volume A, 434; Charleston County Will Book, Volume 11, page 301 (all accessible on Ancestry.com).

Introduction

I have chosen a selection of Jewish wills from the probate records of South Carolina and Georgia in the middle of the eighteenth century (1752-1766). These wills were produced by Jews who migrated to the newest English colonies in the Americas in a period of growing prosperity and imperial conflict; two were composed by men - one of Iberian and one of central European origins - who were part of the initial shipment of Jews from London to Savannah in 1733. One of them, Jacob Olivera,¹ moved to Charles Town (after 1783, Charleston) in the wake of the 1740 War of Jenkins' Ear, which threatened to bring Spanish rule to Georgia, while the other, Benjamin Sheftall, remained behind. The third will is that of an Iberian-descended widow, Leah Pimenta,² who settled in Charleston at some point before 1766.

Several themes emerge across these texts. First, the two men both demonstrate their investment in chattel slavery and their willingness to perpetuate it for the benefit of their families. Furthermore, in contrast to the minimalistic, formulaic language that Stanley Mirvis has found in Jewish wills from Jamaica, both include

¹ Elsewhere spelled Oliveira or D'Olivera.

² Elsewhere spelled Pimento and Pimienta

the Shema prayer and translations of Psalm 31. Olivera further incorporates the traditional Jewish genre of the ethical will and expresses ties to London's Jewish community.

All three testators rely on fellow Jews as executors – one of Olivera's executors is in fact Pimenta's son-in-law – and offer specific instructions in meting out their assets among a range of relations. This is most evident in Pimenta's will. With no religious fanfare, she insists that her estate be “for the sole use” of her daughters, highlighting the significance of wills in shaping the destinies of Jewish families that had relocated across vast distances to strange new places.

Bibliography:

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- Charles Hooper Wilson III, “Slave Ownership in Early Georgia: What Eighteenth-century Wills Reveal,” *Historical Methods* Vol. 44, No. 3 (2021), 115-126.

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Jacob Olivera (1751)

In the name of God Amen! as it is Every persons duty to provide against all accidents Particularly against Death which is Common to all men and I finding myself greatly Indisposed in my Body Altho' thanks be given to the Almighty perfect sound in my mind I desire therefore I am Willing to Dispose of the Effects I shall possess at the time ^{that} I shall Please God to call me to himself in the manner following Vizt. Infirmities I Commend my soul to the Almighty God of Israel Creator of Heavens & Earth Implo-
ring his most Gracious Pardon for all my past sins and Transgressions of which I most sincerely Repent & hoping his Infinite mercies will extend to me Also I most Vehemently & Sincerely Invoke his holy name saying Hear O Israel the Lord our God the Lord is one I do hereby make null & void all former wills and Testaments that I might have made since the day of my Birth without giving only to this my Last will and Testament all the force & Validity it can be had in Law or Equity this being my Last will and Testament after mature Consideration reserving to my self a Power at any time to Alter the whole or part hereof or making a Codicil of addition or Diminution as I shall think most Convenient to which I Desire and Require to be given as full force and Validity as to the whole or part hereof and also by these presents I do make null and void all Powers of Attorney that I ever made in behalf of any person whatsoever it is my Desire Order & Request to my under named Exors that they will and may have my Body buried near my wife & that I may be Interred Accordingly to the Jewish rite & Customs I Bequeath to each male Jew that

In the name of God amen as it is every persons duty to provide against all accidents Particularly against Death which is common to all man and I finding myself greatly indisposed in my body altho thanks be given to the Almighty proper sound in my mind + senses therefore I am willing to dispose of the effects I shall possess at the time that it shall please God to call me to himself in the manner following Vizt. Inpirinis. I commend my soul to the Almighty God of Israel Creator of Heaven + Earth imploring his most Gracious Pardon for all my past sins and transgressions of which I most sincerely repent + hoping his infinite mercies will extend to me alas I most vehemently + sincerely invoke his holy name saying Hear O Israel the Lord our God the Lord is one I do hereby make null + void all former will + testaments that I might have made since the day of my Breadth hitherto giving only to this my Last will and Testament all the force + validity [that?] can be had in Law or Equity this being my Last will and Testament after mature consideration reserving to my self a power at any time to alter the whole or part hereof or making a codicil of addition or elimination as I shall think most convenient to which I desire and require to be given as full force and validity as to the whole or part hereof and also by these presents I do make null and void all powers of attorney that I ever made in behalf of any person whatsoever it is my desire order + request to my under name Exrs that they will and may have my body buried near my wife's + that I may be interred according to the Jewish rites + customs I bequeath to each male Jew that

should have a hand in making or buying my body but provided I
lawfull money of Court Carolina Item I Bequeath the Portuguese
Synagogue at London Ten pounds of lawfull money of the above
mentioned province & likewise my under named Exors Order Prayers in
the said Synagogue for me Item I Bequeath to my well beloved
son David Lopez de Olvera my negro boy named Joses & also my household
furniture wearing apparell & plate that I should possess at the time
of my decease Item and after all my true & lawfull debts and
the above Legacies are paid I Bequeath to my said son David Lopez
de Olvera one equal moiety or half of all the Cash Merchandises
Bonds Bonds Bills notes Chattles or Effects that I should be possessed
at the time of my decease & the other moiety or half of the said Cash
Merchandises goods Bonds Bills Notes Chattles and Effects I Bequeath
between my dear Grand Children named Joseph Jacob Reyna and
Judith, sons and Daughters to my son in Law Joseph Tobias and
my Daughter Leah Tobias to be shared in four equal shares one
Equal fourth part of the said moiety for each of my above named Grand
Children Item it is my their order & Request to my undementioned Exors
that the moiety or half of the Cash Goods Merchandises Bonds Bills notes
Chattles & Effects that should be the share of my said Grand Children
above mentioned shall & maybe put out to Interest by my undementioned
Exors for the use & behoof of my above mentioned Grand Children
& it is further my will that the Interest that shall come due from
time to time may be added to the Capital & so continue on Interest until
they or any of them come to the age of twenty one year at which time
it shall be lawfull for him or her that comes to that age to receive their
shares & if the hands of my undementioned Exors But at no
time my said son in Law Joseph Tobias or my Daughter Leah Tobias shall
have any right or title to demand ask or receive any part thereof
or of the Interest accruing there upon & it is further my will
that in case of one or more of my abovementioned Grand Children
should not live or live to the age of twenty one years that
the share of him or them so dying shall be Equally shared
amongst the other or others surviving that has not yet Received
their share & shall be added to the Capital and in case
they should all die before the age of twenty one (which
God forbid) then and in such case the whole sums
& Interest I Bequeath to my said son David Lopez de Olvera
or his lawfull heirs and also if one or more of my said
Grand Children should have Received their shares & the others
that have not should die that the shares of them so
dying shall also be given to my said son David Lopez

x old book bound

should have a hand in washing or burying my body ten pounds lawful money of South Carolina. Item. I bequest the Portuguese synagogue of London ten pounds of lawful money of the above mentioned province + desire my under named execs to order prayers in the said synagogue for me. Item. I bequest to my well beloved son David Lopes De Olivera my negro boy named Jones + also my household furniture meaning apparel + plate that I should posses at the time of my decease. Item and after all my true and lawfull Debts and the above Legacies are paid I Bequeath to my said son David Lopez D'Olivera one equal moiety or half of all the Cash merchandise goods Bonds Bills Notes Chattles and Effects. I bequeath between my dear Grand Children named Joseph Jacob, Byna, and Judith, sons and Daughters to my son in law Joseph Tobias and my Daughter Leah Tobias to be shared in four equal shares one equal fourth part of the said moiety for each of my above named Grand Children. Item it is my desire order + Request to my undermentioned Ex[ecuto]rs that the moiety or half of the Cash Goods Merchandise Bonds Bills notes Chattles + Effects should be the share of my said Grand Children above mentioned shall + may be put out to Interest by my undernamed Exrs for the use + behoof of my above mentioned Grand Children+ it is further my will that the Interest that shall be come due from time to time may be added to the Capital and so continue in Interest until they or any of them come to the age of twenty one years at which time it shall be lawful for him or her that comes to that age to receive their shares out of the hands of my undermentioned ex[ecut]ors. But at no time my said son in law Joseph Tobias or my daughter Leah Tobias shall have any right or title to demand ask or receive any part thereof the interest accruing there upon and it is further my will that in case of one or more of my above mentioned grand children should not come or live to the age of twenty one years that the share of him or them so dying shall be equal shared amongst the other or other surviving that has not yett* received their share and shallowing be added to the Capital and in case they should all die before the age of twenty one (which God forbid) then and in such case the whole sum & interest I bequeath to my said son David Lopez De Olivera or his lawful heirs and also if one or more of my said Grand Children should have Receive their shares + the others that have not should die that the shares of them so dying shall also be given to my said son David Lopez

*old book sum

De Olivera or his Lawfull heirs Item I do nominate make ordain constitute
 & appoint by these presents my said son David Lopez De Olivera & my good
 friend Isaac Da Costa my Lawfull Ex^{rs} & also my last will and
 Testament that they may ask Demand Recover and Receive from all
 persons whatever what shall be Lawfully due to me at the time
 of my decease and also to agree settle and adjust all my
 affairs that should remain unsettled at the time of my decease
 Recommending to my dear and Beloved Son David Lopez De Olivera
 and to my good friend Isaac Da Costa my Lawfull Executors to this
 my last will & Testament to Comply and fulfill all and whatever
 is herein Contained I also Recommend to my said son to walk
 in the fear of God and in the path of Virtue which is the last
 and best legacy I can leave him I conclude with Imploring
 the Divine mercy of my Creator to Receive my soul with pity on
 my frail nature saying In thy hands I will Deposit my Spirit
 Thou hast Preserved me O Good God of Truth

Signed & sealed at Charles Town
 South Carolina the 2nd day of
 July 1751 & in the presence of us

John Sinclair
 Sol: Isaac's
 Chas: Nelson

Jacob Olivera (S)

This will was proved before his Ex^{ty} the 10th
 day of May 1752 by the oath of sol: Isaac &
 at the same time David Lopez De Olivera one of
 the Ex^{rs} qualified & the other Refused under
 his hand & seal

De Olivera or his Lawfull heirs Item I do nominate make ordain Constitute +
 appoint by these presents my said son David Lopez De Olivera + my good friend
 Isaac Da Costa my lawfull Ex[ecuto]rs. To this my last will and Testament that
 they may ask Demand Recover and Receive from all persons whatever what shall
 be Lawfully due to me, at the time of my decease and also to agree settle and
 adjust all my affairs that should remain unsettled at the time of my decease +
 Recommending to my dear and Beloved Son David Lopez De Oliver and to my
 good friend Isaac DaCosta my Lawfull Executors to this my Last Will and
 Testament to Comply and fulfill all and whatever is herein Contained. I also
 recommend to my said son to walk in the fear of God and in the path of virtue
 which is the last and best legacy I can leave him. I conclude with imploring the

Divine mercy of my Creator to Receive my soul with pity on my frail nature saying
In thy hands I will Deposit my Spirit. Thou hast rescued me o Lord God of Truth.

Signed + Sealed in Charles Town

Jacob Olivera SEAL

South Carolina the 27th day of

July 1751 + in the presence of us

John Sinclair

This will was p^d before his Ex[cllenc]y the 15th day of May 1752 by the oath of
Sol. Isaac + at the same time David Lopez DeOlivera one of the Ex[ecutor]s
qualified + the other refused under his hand + seal.

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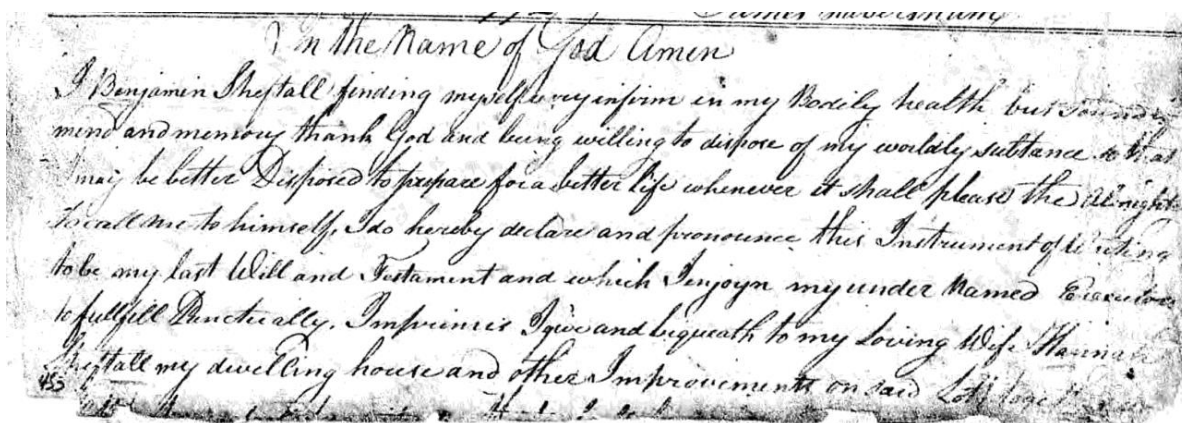
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Shari Rabin, Oberlin College

Chatham County Will Book, Volume A, 434. Accessible on Ancestry.com.

Benjamin Sheftall (1765)



In the Name of God Amen.

I, Benjamin Sheftall finding myself very infirm in my Bodily health but strong mind and memory thank God and being willing to dispose of my worldly substance so that I may be better Disposed to prepare for a better life whenever it shall please the Almighty to call me to himself, do hereby declare and pronounce this Instrument of writing to be my last Will and Testament and which I enjoy my under named executors to fulfill punctual. Impimes, I give and bequeath to my loving wife Hannah Sheftall my dwelling house and the improvements on said lot [...illegible]

dease as also my negroe Wench named Betty and her two Children named
 Jack and Ben for and during the time of the Natural Life of my said wife
 Hannah Sheffall and after dease I give and bequeath the whole of the above
 mentioned (Except the two negroe Children which are to be disposed as here
 after mentioned) to my son Levi Sheffall and my two Grand Children
 named Sheffall Sheffall Mordecai Sheffall the one half to be divided to
 my two Grand Children and the other half for my son Levi. Secondly
 the lease that I shall be possessed of at the time of my dease as
 whatever may be recovered by my Executors for all bonds Notes
 Debts or any other matters that shall be due to me and of the price
 of the sale of the two hundred acres of land that I bought of John Snodden
 which I hereby direct may be sold at publick Vendue to the highest
 bidder after my dease and of the proceeds of a (other Chattels or
 not specified above) belonging or appertaining to me at the time of
 my dease, It is my will that after all my Just debts be paid
 me Executors that the remainder be put out a Interest by my
 Executors On good Security and the Interest arising therefor
 shall be paid Regularly to my said Wife Hannah Sheffall
 and during her Natural Life and at her dease the whole I give and bequeath
 to my son Levi Sheffall and my two Grand Children Sheffall & Mordecai
 on half for my son Levi and the other half to be Equally divided between
 two Grand Children or their Lawfull heirs. Thirdly after the dease of
 said Wife Hannah Sheffall I give and bequeath my Negroe boy named
 Ben to my Levi or his Lawfull heirs and my Negroe boy Jack to
 two Grand Children or their Lawfull heirs. Fourthly I hereby Give
 my Grand Children all that tract of land containing One hundred
 and fifty acres lying land of my son Mordecai at a place
 the Hoping Island Fifthly I hereby acquit Release & discharge
 son Mordecai of the sum of Twelve pounds Sterling which he
 and is not charged in my books as also of the further sum of Eighteen pounds
 Sterling out of the sum that is charged him in my books making in the
 the sum of thirty pounds Sterling being as an Equivalent to
 I have some time past Given to my son Levi and lastly I do hereby
 Nominate and appoint my well beloved Wife Hannah Sheffall & my

upon my decease as also my negro Wench Named betty and her two children named Jack and Ben for and during the time of the natural life of my said wife Hannah Sheftall and at her decease I give and bequeath the whole of the above mentioned Except the two negroe children which are to be disposed of as hereafter mentioned (to my son Levi Sheftall and my two grand children named Sheftall Sheftall & Perla Sheftall the one half to be divided between My two Grand Children and the other half for my son Levi. Secondly, all the cash that I shall be possessed of at the time of my decease as able whatever may be recovered by my Executors for all bonds, notes, Debts or any other matters that shall be due to me and of the proceeds of the sale of the two hundred acres of land that I bought of John Snook which I hereby direct may be sold at publick vendue to the highest bidder after my decease and of the proceeds of all other chattels or effects not specified above, belonging or appertaining to me at the time of my decease. It is my will that after all my just debts be paid by my executors that the remainder be put out a interest by my executor on good Security and the Interest arising therefrom shall be paid regularly to my said wife Hannah Sheftall to and during her natural life and at her decease the whole I give and bequeath to my son Levi Sheftall and my two grand children Sheftall & Perla. + one half for my son Levi and the other half to be equally divided between two grandchildren or their lawful heirs. Thirdly, after the decease of said wife Hannah Sheftall I give and bequeath my negro boy named Ben to my Levi or his lawful heirs and my negro boy Jack to my two Grand Children or their lawful heirs. ? I hereby give my two Grand Children all that tract of land containing one hundred and fifty acres Joyning land of my son, Mordecai at a place on the Hoping Islands. ? I hereby acquit release & discharge my son Mordecai of the sum of twelve pounds sterling which he owes and is not charged in my books as also of the further sum of eighteen pounds sterling out of the same that is charged him in my books making in total the sum of thirty pounds sterling being as an equivalent to ? I have some time past Given to my son Levi. And lastly I do hereby nominate and appoint my well beloved wife Hannah Sheftall & my ?? executors in this matter.

Testament and Resigning my self to the divine Mercy of my Creator I
 Conclude Acknowledging the Truth of thy Unity O Lord I
 had one God is one God in thy hands O Lord my Spirit thou
 hast Received me O Lord God of truth
 Savannah in Georgia this fourth day of August One thousand seven
 hundred & fifty five and in the fifth year of his Majestys Reign
 Signed Sealed published & declared to be the
 last Will and Testament of the Testator in
 Benjamin Sheftall who has acknowledged to
 that he knows the contents hereof and we
 Testify said Testator is in his proper senses
 far as we are able to Judge

Benjamin Sheftall (S)

Peter Bondce

Thomas Club

Adrian Loyce

Before his Honor James Habersham Esq. Justice
 and Commander in Chief of his Majestys said
 Province and Ordinary of the same

Personally appeared Peter Bondce of the Town of Savannah Carpenter being
 the Subscribing Witness to the within or Annexed written last Will and
 Testament of Benjamin Sheftall late of Savannah Merchant deceased
 who being solemnly sworn on the Holy Evangelists of Almighty God
 made Oath that he was present and did see the said Testator
 sign Seal publish pronounce and declare the same to be
 contain his last Will and Testament and that he was of sound
 disposing mind and memory to the best of his knowledge and belief
 and that he with Thomas Club & Adrian Loyce subscribed their
 names as Witnesses to the said Will at the request and in the presence
 of the said Testator and in each others presence

At the same time Michael Sheftall one
 of the Executors named in the said Will Qualified
 such

Given under my hand the fourth day of
 May 1772
 James Habersham

Recorded 5th May 1772

...Testament and resigning my self to the divine Mercy of my Creator I conclude, acknowledging the truth of thy unity here oh Israel the Lord our God is one God in thy hands I commend my spirit. Thou hast received me oh Lord God of truth.

Savannah in Georgia this fourth day of August one thousand seven hundred sixty five and in the fifth year of his Majesty's Reign

Signed Sealed Published & declared to be the

Benjamin Sheftall [seal]

Last will and Testament of the Testator

Benjamin Sheftall who has acknowledge to

us that he has the Contents hereof and we

Testify, said Testator is in his proper Senese as

Far as we are able to Judge

Peter Tondee

Thomas Celu

Add. Layer

Before his Honor James Habersham Esq. Presider and Commander in Chief of his Majesty's said Province and Ordinary of the above

Personally appeared Peter Tondee of the town of Savannah Carpenter one of the subscribing Witnesses to the within or annexed written last will and Testament of Benjamin Sheftall late of Savannah Merchant deceased who being Solemnly

Sworn on the Holy Evangelists of Almighty God made Oath that he was present and did see the said Testator sign seal publish pronounce and declare the same to

be and contain his last Will and Testament and that he was of sound disposing mind and memory As the best of this knowledge and ? and that he with Thomas Club & Adrian Soyer subscribed names as witnesses to the said will at the rest and in the presence of the said testator and in each others presence.

At the same time Mordecai Sheftall one of the Executors named in the said Will Qualified such Given under my hand the fourth day of May 1772

James Habersham

Recorded 5th May 1772

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Leah Pimenta (1766)

I was not able to procure images of the probate records for this will.

“BE IT REMEMBERED That I Leah Pimenta of Charles Town in the Province of So. Carolina Widow being in Health and sound mind memory and Understanding do make and publish this my Last Will and Testament in manner and form following, that is to say, First I will that all my Just debts and funeral Expences be duly paid and Satisfied, ITEM I give unto Joshua Hart of Charles Town shopkeeper and Mordecai Myers of Ponpon Storekeeper and to the Survivor of them and the Executors and administrators of such survivor, all such sum and sums of money that are or shall be due owing payable or belonging to me, at the time of my decease, from my son in law Isaac DaCosta of Charles Town Merchant, whether by Bond, Note, Bill Book debt account or otherwise howsoever, IN TRUST nevertheless and to and for the several Uses, intents and purposes hereafter mentioned, and to and for no other use intent or purpose whatsoever, that is to say for the sole use benefit and behoof of my daughter Sarah now wife of the said Isaac DaCosta, to the intent that the said Sarah may from time to time have hold receive and take such part or parts thereof during the Term of her natural Life and dispose of the same at her will and pleasure without the control of her said husband for the support and maintenance of herself and her children which she hath or may have by the said Isaac DaCosta and after her decease the Remainder to be Equally divided between all her said Children as shall be then living share and share alike and all the rest residue and remainder of my Estate of what Nature or kind the

same may be, I will be divided into two equal parts, One part thereof I give and bequeath unto my daughter Joel Pimenta, her Executors administrators and Assigns forever, and the other part thereof...I give unto the said Joshua Hart and Mordecai Myers and the survivor of them and the Executors and administrators of such survivor IN TRUST for the Sole use benefit and behoof of my daughter Rebecah Wife of Abraham Dacosta during the Term of her Natural Life without being Liable to the Will Controll or disposal of her said Husband and after her decease such part thereof as shall be remaining to be equally divided between such Children she may have by the said Abraham Dacosta at the time of her decease and in default of Issue to the said Abraham DaCosta AND I do hereby Nominate and appoint the said Joshua Hart and Mordecai Myers Executors of this my Last Will and Testament hereby revoking all former and other Will and Wills by me heretofore made declaring this only to be my last Will and Testament, IN WITNESS whereof I have hereunto set my hand and Seal the Twenty Seventh day of November, in the year of our Lord One thousand seven hundred and Sixty Six.
Her Leah Pimenta (L.S.)

Mark

Signed Sealed published pronounced and
declared by the Testatrix for and as her last
Will and Testament in her presence have subscribed
Our Names as Witnesses thereto.

John Butler Figgott

William Remington

John Remington

Proved before his Excellency the Rt. Ho. Ld. Charles Greville Montagu 11th March
1768 at the same time Qualified Mordecai Myers Executor to the said Will.